



An Ambitious Agenda

BY CHRISTOPHER TOWNSEND, NAVY LEAGUE NATIONAL PRESIDENT

I am truly humbled to have the great honor of serving as the 52nd National President of our Navy League of the United States. It is with deep gratitude, an extreme sense of duty, and unbridled

excitement that I approach these next two years at the helm of our Navy League. I fully recognize the weight of this responsibility and immediately began implementing my ambitious agenda from day one.

First and foremost, I would like to express my sincere appreciation to my predecessors for their invaluable contributions that elevated our Navy League to its current position of strength. I firmly believe that, due to their efforts, we are as strong an organization as we have been in our 120-year history.

NOW is the time to take the Navy League to the next level. We need to focus on strengthening our Navy League councils across the globe and launch new councils in strategic areas. We must grow the organization with a diverse group of new members that are passionate about our mission. Finally, the organization must enhance our mission execution while we firmly establish the Navy League of the United States as the preeminent maritime support organization in the world.

We find ourselves at a critical juncture in our nation's history. We live in an era of great power competition, where technological advancements and geopolitical shifts pose significant challenges to our naval forces. These challenges are vast and complex, from safeguarding our national security to promoting peace

and stability in a rapidly changing world. It is within this context that the Navy League assumes its pivotal role — fostering a strong partnership between the American people and our maritime services.

Our beloved Navy, Marine Corps, Coast Guard, and Merchant Marines are the guardians of our freedom, protecting our shores and projecting our influence across the globe. They are the embodiment of our nation's values and the epitome of excellence and professionalism. As National President, I pledge to work tirelessly to advocate for their needs, ensuring they have the resources, support, and recognition that they deserve.

Education and outreach are the cornerstones of the Navy League's mission. We must continue to inspire the next generation, nurturing a deep understanding of the vital role our maritime services play in our nation's security and prosperity. Through scholarships, internships, and youth programs, we will empower young minds to pursue careers in the maritime domain, fostering a talented pipeline of future leaders.

Lastly, I call upon all Navy League members, from coast to coast and around the world, to join me in this endeavor. We are a community of patriots, united by our love for our nation and our unwavering support for our maritime services. Let us embrace our shared purpose and work together to shape a brighter future for our Navy League and for the United States. Roll up your sleeves with me and let us together launch our Navy League to the next level! Together, we will strengthen our naval forces, empower our Sailors, Marines, Coast Guardsmen, and Merchant Mariners, and ensure the enduring maritime supremacy of our great nation.

Thank you, again. May God bless the Navy League of the United States and the United States of America!

Towny

Christopher "Towny" Townsend
52nd National President



Saying Goodbye

BY ANN TROPEA, EDITOR-IN-CHIEF

Every living thing is part of a continuous cycle of birth, life, and death. Sometimes those living things are part of the natural world, like humans, animals, and plants. And sometimes those living things are created by humans, like organizations, art, and ideas.

Nothing lasts forever.

Eventually, we all have to say goodbye to something. It's a tie that binds, but it's not one that we spend a lot of time talking about as Americans. Saying goodbye is hard. It hurts. So, we push it away and pretend that it doesn't exist. We resist talking about loss, about grief, about death. We ignore it, both in ourselves and in others. We shove it into the dark recesses — in a closet, under a bed — hoping that it goes away. But it doesn't. It can't. You see, those goodbyes are a part of us. Of all of us. Our ability to suffer loss means that we are alive.

Earlier this year, I learned that a Marine Corps officer — beloved by family, friends, and Corps — lost his life to suicide. The brother of my colleague, and (although I didn't know him) my brother as a Marine. How do you celebrate the life of those who feel compelled to leave it so soon? How do you do justice to the sacrifices made on behalf of our great nation? How do you help your fellow humans grieve?

I don't have the answers to all those questions, but I know that it's vitally important to create the space for those conversations to happen. Ignoring loss makes it so much harder to bear.

You'll notice that much of this issue is devoted to the emotional wellness of our sea services, with insights from mental health professionals (page 35) to resources available for veterans who need extra support (page 37) to the spiritual readiness of our service men and women who are tasked with doing the really hard things every day (page 30). I also have my own goodbye to say to 4th Recruit Training Battalion, where I was born as Marine (page 24).

We need to normalize the goodbyes. It's not always pretty, but there is beauty in our humanity.

This issue is dedicated to Kenneth Motsay (page 29), and to every United States Marine who felt they had no other option. *Semper Fi*.

Ready to lead, ready to follow.



The Pro Bono Paradox

What You Don't Know May Be Hurting Your Client

By Ann Fenton

The expectation that attorneys will provide legal services pro bono publico—for the good of the public—is widely known and largely embraced by the legal community. The ABA strongly encourages the practice through the Model Rules of Professional Conduct, and many law firms do the same through in-firm pro bono programs. But many defense attorneys confront a troublesome gap between a ready willingness to contribute pro bono hours and an ability to provide the types of services most needed by their communities. Even simple family law cases—an uncontested divorce for example—can raise tricky questions of immigration status and the distribution of marital property. And a corporate attorney may be a wiz at contract interpretation but might not have the first clue about how to interview a potential client seeking a protective order from an abusive partner. Yet the duty to provide competent representation applies equally to corporate and pro bono clients alike, and attorneys should choose their pro bono cases carefully to ensure that they help, rather than hurt, clients.

By the Book

Model Rules of Professional Conduct Rule 1.1 requires that a lawyer “shall provide competent representation to a client.” The comment to that rule suggests that a lawyer should consider several factors when determining if she or he may represent a client, including the lawyer’s “training and experience in the field in question.” Model Rules of Prof’l Conduct R. 1.1 cmt. 1. It is with that bedrock principle in mind that an attorney must view Model Rule 6.1, which states that all lawyers have a “professional responsibility” to provide free legal services to those who cannot afford to pay. Further, a lawyer “should aspire” to provide at least 50 hours of pro bono legal services per year and to provide a “substantial majority” of those hours either directly or indirectly to “persons of limited means.” See Model Rules of Prof’l Conduct R. 6.1(a). The upshot? Lawyers *should* provide pro bono services, and *must* do so competently.

Pro Bono Paradox

Fulfilling the ethical duties of both Model Rules 1.1 and 1.6 may not be as straightforward as it first appears. Even choosing an appropriate pro bono case from a list of referrals can—and should—raise questions. For instance, does a lawyer have the ability to adequately represent an intended client? Can he or she adequately interview a potential pro bono client? Think of the first year associate or an attorney who may not have expertise in the relevant area of law. Unlike corporate clients, most pro bono clients probably are unfamiliar with the legal process and may not even fully understand their own cases. And a lawyer who fails to ask the right questions before undertaking representation may quickly discover that a “simple” family law case involves “poverty issues, abuse issues, special education needs, mental health issues, and landlord/tenant issues.” Laurie Barron *et al.*, *Don’t Do It Alone: A Community-Based, Collaborative Approach to Pro Bono*, 23 Geo. J. Legal Ethics 323, 324 (2010). As one legal aid attorney put it, you wouldn’t expect a divorce lawyer to tackle an insurance defense case—and vice versa. Without adequate experience or relevant expertise, if an attorney lacks cultural competence it only compounds the problem and “can have negative consequences for the very groups that firms are attempting to serve.” Scott L. Cummings & Deborah L. Rhode, *Managing Pro Bono: Doing Well by Doing Better*, 78 Fordham L. Rev. 2357, 2428 (2010).

Unfortunately, even if an attorney diligently chooses an appropriate pro bono client that doesn’t guarantee that other issues won’t crop up in the course of the representation. Scant support for those who accept pro bono referrals can affect quality, and “working alone on a complicated pro bono case can be isolating, frustrating, and overwhelming.” Barron, *supra*. Yet many attorneys representing pro bono clients do not have access to more experienced attorneys in the relevant area of law to assist them if (when) a tricky legal question arises. Moreover, relying on referring organizations for substantive support may not always be a viable option because they generally lack the staff or funding to train associates. So “if firms rely on understaffed nonprofit organizations to shoulder much of the training burden, the

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■ Ann Fenton is a defense litigation associate at Barrasso Usdin Kupperman Freeman & Sarver in New Orleans. A member of DRI’s Lawyers’ Professionalism and Ethics Committee, her primary areas of practice include toxic torts and product liability.

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resource tradeoffs could affect the provision of important services.” See Rhode, *supra*, at 2443.

Finding a Solution

Although when an attorney does decide to represent a pro bono client who needs representation outside of that attorney’s area

of expertise may raise competency issues, the problems are far from insurmountable. Many defense attorneys, myself included, are dedicated to fulfilling their ethical duties by providing legal services pro bono publico despite the potential pitfalls. Simply recognizing that our skill sets may not match the needs of potential pro bono clients is an important first step. Under-

standing what we *don’t* know is critical to figuring out how to use what we *do* know to our clients’ advantage. Additionally, setting aside adequate time for self-education in relevant areas of law and ensuring that we have proper support systems in place will go a long way to serving our pro bono clients with all the expertise, skills and advocacy that they deserve. 

MEMORANDUM

TO: Client Defense Team

FROM: Ann Tropea, Attorney at law

SUBJECT: Opposition to Phased Trials

File No. xx,xxx

QUESTION PRESENTED

Whether the purpose and limitations imbedded in class action litigation can be employed to oppose attempt by plaintiffs' counsel to conduct a mass, phased-trial for over 800 plaintiffs in individually-filed cases, where plaintiffs' have not filed a motion to consolidate or to certify a class.

BRIEF ANSWER

Probably yes. Attempts to conduct a quasi-class action by plaintiffs' counsel may be opposed for the following reasons:

1. The phased-trial structure permitted in the context of some class actions does not promote the asserted goal of a streamlined trial.
2. The necessary inquiry into individual causation required in toxic exposure cases vitiates the justification for a "common issues" phase to the trial.
3. Utilizing the case management tools available in class actions without having to comply with the procedural rules and safeguards embedded in Rule 23 is arguably unfair to defendants.

DISCUSSION

The class action was developed as "an exception to the usual rule that litigation is conducted by and on behalf of the individual named parties only," and as a way to conserve judicial resources by litigating issues potentially affecting every class member in an efficient manner. *Gen. Tel. Co. of Sw. v. Falcon*, 457 U.S. 147, 155 (1982). The potential for abuse by "the court's gestalt judgment" is tempered, however, by the procedural safeguards contained in the rule governing

class actions. *Amchem Prods., Inc. v. Windsor*, 521 U.S. 591, 621 (1997) (stating that class certification is not based on a “fairness” inquiry” as that would render the requirements set forth under Rule 23 meaningless). Class certification also affects the way in which the litigation progresses, and “determines the stakes, the structure of trial and methods of proof, the scope and timing of discovery and motion practice, and the length and cost of the litigation. Manual for Complex Litigation, Third § 30.1 (1995).

The Fifth Circuit has noted that the district courts have wide discretion to manage the litigation, and has allowed class actions to proceed by conducting a “common issues” trial with respect to liability, followed by a series of mini trials with small groups of plaintiffs addressing “causation, damages, and comparative negligence.” *Mullen v. Treasure Chest Casino, LLC*, 186 F.3d 620, 623 (5th Cir. 1999). In toxic exposure cases, however, “[c]ourts have repeatedly held that claims for personal and emotional injuries ... are inappropriate for class treatment because individualized factual issues concerning specific causation and damages predominate over any common issues.” *Myers v. BP Am., Inc.*, No. 08-0168, 2009 WL 2341983, at *5 (W.D. La. July 29, 2009) (citing *Steering Comm. v. Exxon Mobil Corp.*, 461 F.3d 598, 601-04 (5th Cir. 2006)). For those cases where class certification is inappropriate, there are other ways to streamline impending litigation using other “case management tools, including narrowing the claims and potential plaintiffs through summary judgment.” *Exxon*, 461 F.3d at 604.

In *Myers*, the district court denied the plaintiffs’ request to certify a class to litigate their exposure claims arising from a release of airborne radiation dust as a result of an oil platform decommissioning project. *Myers*, 2009 WL 2341983, at *1. The plaintiffs argued that because the cause of exposure itself was a common issue, class certification was appropriate. *Id.* at *8. The district court disagreed, stating that although the issue of exposure was a common issue, determining causation would require a searching, individualized inquiry:

[E]ach individual plaintiff must meet the burden of medical causation, which, in turn, will depend on any number of factors enumerated by the experts who would testify at trial, including the level of each plaintiff’s individual exposure (which will, in turn, depend on the length of time each spent at the job site and the location of each plaintiff on the site relative to the NORM impacted material) each plaintiff’s pre-existing medical history, susceptibility to illness, type of symptom or illness each plaintiff may experience (if any), and type of medical treatment rendered, or which may be rendered, in the future.

Id. Thus, the district court denied class certification, finding that “difficult questions of causation which are presented in this case preclude a class wide finding that any particular class member’s claimed damage resulted necessarily and immediately and directly from the defendants’ alleged breach.” *Id.* (internal citations omitted).

In the recent Vioxx litigation, the Eastern District reached a similar conclusion when it denied class certification to those potential plaintiffs who allegedly suffered injury as a result of ingesting Vioxx. *See In re Vioxx Prod. Liab. Litig.*, 239 F.R.D. 450 (E.D. La. 2006). In *Vioxx*, the district court rejected plaintiffs' proposal for a phased trial that was "designed to obtain a preliminary finding of liability, followed by a second phase involving individual determination of causation and damages." *Id.* at 462 (internal quotation marks omitted). The Court found that the phased trial structure would not create a more efficient system of trial, as the proposal failed to "eliminate the highly individualized inquiry of whether Vioxx specifically caused the injury alleged by each plaintiff in light of his or her medical history, family history, other risk factors, and use of the drug." *Id.* Citing a law review article from the University of Illinois, the court additionally noted that resolving the general causation issue as an initial matter would do little, if anything, to change the overall course of the litigation:

Mass trials on the issue of "general" causation create substantial savings only when plaintiffs lose because this leads immediately to the dismissal of large numbers of mass tort claims, as the Bendectin case illustrates. Rarely, however, will a mass trial lead to the prompt entry of judgment in favor of a large group of plaintiffs against one or more defendants because even if the first jury finds, for example, that the defendant's product could have caused the plaintiff's injury, individual trials will still be necessary to determine specific causation, whether any affirmative defenses are available to the defendant, and the extent of the plaintiff's damages. Little or no time and expense will be saved in these individual trials by virtue of the preceding mass trial on general causation.

Id. (citing Roger H. Trangsrud, *Mass Trials in Mass Tort Cases: A Dissent*, 1989 U. Ill. L.Rev. 69, 79). Finally, the *Vioxx* court rejected plaintiffs' reliance on mass disaster cases based on recent Fifth Circuit jurisprudence indicating that, although the cause of injury may be the same, the necessity of proving individual causation for each plaintiff would cause the action to degenerate into multiple, individual lawsuits. *Id.* (citing *Steering Comm. v. Exxon Mobil Corp.*, 461 F.3d 598 (5th Cir. 2006 (finding that the hundreds of individual suits filed against Exxon alleging toxic exposure resulting from an oil spill that caught fire were unable to be tried together as a class action, as individual causation issued predominated))).

Here, plaintiffs' counsel has suggested that the 14th Judicial District Court adopt a phased trial similar to that allowed in the class action context. First, counsel's arguments in favor are strikingly similar to the plaintiffs' efficiency arguments rejected by the Western District in *Myers*, and the Eastern District in *Vioxx*. The cases filed against Client suffer the same defect that precluded the *Myers*, *Vioxx* and *Exxon* courts from certifying classes for the hundreds of individual actions filed in each of those cases; the purpose behind conducting a class action (or a phased trial) is to promote efficiency and to streamline the litigation process. If the proposed trial structure does neither, there can be no logical reason for a trial court to adopt that structure in the face of contrary jurisprudence, and the lack of any affirmative support.

Second, counsel's proposal is inappropriate due to the necessity that each plaintiff prove injury and causation. As Client has stipulated to fault, the "common issues" identified by the *Myers* court have already been determined, thereby negating any predicate for a phased trial. The individual issues are all that remain, and conducting a phase one "common issues" trial would do nothing, as noted by the *Vioxx* court, to further the litigation as individual issues necessarily predominate to determine the amount, if any, of compensatory damages owed to each plaintiff.

Finally, the U.S. Supreme Court has noted that the class action exists as an exception to the general rule requiring actions to be brought and maintained by individually-named parties. Counsel in this case, however, seeks to use the powerful case management tools available in class actions without the necessity of complying with the procedural rules and safeguards imbedded in the class action framework. Arguably, because class actions require unique pre-trial management strategies as suggested by the Manual for Complex Litigation (cited above), allowing counsel to proceed with a quasi-class at this late stage of the litigation is ultimately unfair to defendants, who have not had the benefit of preparing a defense with the class structure in mind.

AMERICANS FOR SAFE ACCESS

Advancing Legal Medical Marijuana Therapeutics and Research

*** FOR IMMEDIATE RELEASE ***

Response to Los Angeles County Proposal to Ban Vape Products — Americans for Safe Access

October XXXX | Ann Tropea

Washington, D.C. —The Los Angeles County Board of Supervisors voted unanimously Tuesday to ban flavored vape products, while also calling on Governor Gavin Newsome to pass a statewide law banning vaping in California. The flavored product ban will take effect in 30 days.

Los Angeles County is the latest local municipality to issue a ban on vaping or vape products in the wake of recent CDC and California Department of Public Health advisories linking vape use to serious health problems. Americans for Safe Access recognizes the duty of local governments to take action to protect its citizens from public health risks, and shares the concern that some vape products may put consumers and patients at risk.

ASA does not support across-the-board bans on vape products or devices, as many patients rely on these delivery systems to medicate with cannabis-containing products. Outright bans, as proposed by the LA County Board, may encourage people to seek products from unregulated markets, putting them risk of purchasing or using contaminated or otherwise unsafe products. We strongly encourage all consumers and patients to only purchase cannabis products that have undergone independent testing for quality and composition.

ASA recommends bans on additives not derived from cannabis, and registers qualified support for the LA County Board decision to take action regarding vape products containing flavoring agents that may encompass such additives. However, we urge the Board of Supervisors and other governing bodies to craft targeted bans, using language that differentiates safe from unsafe additives, and that supports continued access to cannabis-containing vape products.
